

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shevani Patel	Team: Team # 5	CCRB Case #: 201402123	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/04/2014 6:20 AM, Wednesday, 03/19/2014 12:00 AM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 9/4/2015	Precinct: 73		
Date/Time CV Reported Wed, 03/05/2014 2:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/05/2014 2:25 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. An officer			WARRSEC
2. DT3 Michael Perez	02470	930939	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Michael Perez	Abuse: On March 4, 2014, Det. Michael Perez entered and searched § 87(2)(b) [REDACTED] in Brooklyn.	A . Exonerated
B . An officer	Discourtesy: On March 4, 2014, an officer spoke rudely to § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]	B . Officer(s) Unidentified
C . An officer	Abuse: On March 4, 2014, an officer threatened to arrest § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]	C . Officer(s) Unidentified
D . DT3 Michael Perez	Abuse: On March 19, 2014, Det. Michael Perez entered and searched § 87(2)(b) [REDACTED] in Brooklyn.	D . Exonerated

Case Summary

On March 6, 2014, § 87(2)(b) filed a complaint with the CCRB over the telephone (encl. 3A-B).

On March 6, 2014, at approximately 6:20 a.m., and on March 19, 2014, at approximately 6:30 a.m., officers from the Warrant Section entered § 87(2)(b) Apts. § 87(2)(b) and § 87(2)(b) in Brooklyn in regards to a parole warrant. The following allegations resulted:

- **Allegation A – Abuse of Authority: On March 4, 2014, Det. Michael Perez entered and searched § 87(2)(b) in Brooklyn.**
- **Allegation D – Abuse of Authority: On March 19, 2014, Det. Michael Perez entered and searched § 87(2)(b) in Brooklyn.** § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations A and D be closed as exonerated.**

- **Allegation B – Discourtesy: On March 4, 2014, an officer spoke rudely to § 87(2)(b) and § 87(2)(b)**
- **Allegation C – Abuse of Authority: On March 4, 2014, an officer threatened to arrest § 87(2)(b) and § 87(2)(b) § 87(2)(g)**

§ 87(2)(b) It is therefore recommended that **Allegations B and C be closed as officer unidentified.**

This case was ineligible for mediation.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *old at the time of the incident, is a black female who § 87(2)(b) has brown hair and brown eyes.* § 87(2)(b)

CCRB Testimony

On March 6, 2014, § 87(2)(b) provided a telephone statement when filing this complaint (encl. 3A-B). On March 28, 2014, § 87(2)(b) was interviewed at the CCRB (encl. 4B-H). On April 18, 2014, she provided additional information over the telephone (encl. 4I).

§ 87(2)(b) resides at § 87(2)(b) § 87(2)(b) in Brooklyn and her son, § 87(2)(b) resides next door in Apartment § 87(2)(b)

On March 4, 2014, at approximately 6:20 a.m., § 87(2)(b) was sleeping inside of her apartment with were her fiancé, § 87(2)(b) and her § 87(2)(b)-old son, § 87(2)(b). She answered knocking at her door and saw an officer identified by investigation as Det. Michael Perez of the Warrant Section with about six other officers. Det. Perez told her that they needed to enter because her son, § 87(2)(b) had violated his parole. § 87(2)(b) allowed them in. The officers walked into each room, closet and through the backdoor into the backyard.

§ 87(2)(b) went into the hallway where she saw two white male officers kicking the door to § 87(2)(b). An unidentified officer, who she described as a white male who was at least 6' tall and muscular, yelled, "Open the fucking door." On the other side, § 87(2)(b) was attempting to open the door, but it was jammed. § 87(2)(b) opened the door and it fell off the hinges. All of the officers ran inside. No one else was inside.

§ 87(2)(b) went into the apartment. The unidentified white officer kicked the bedroom door open. He and another officer, who § 87(2)(b) could not recall, ran into the room and § 87(2)(b) heard “crashing,” and saw that they had broken an antique mirror. Officers slammed the sliding door closets, breaking them, and threw items around. Officers opened kitchen cabinets and went into the rooms. Aside from the mirror and doors, § 87(2)(b) could not recall any additional items that were damaged.

§ 87(2)(b) and § 87(2)(b) continuously asked about the warrant. An unidentified officer, who § 87(2)(b) described as a white male who was 5’8” tall, heavy-set with white hair in his late fifties, told them, “Shut the fuck up. You don’t ask the questions. I ask the motherfucking questions. I said shut the fuck up. If you don’t shut the fuck up and sit your ass down, I’m going to arrest you. Now sit down.” Another officer ran § 87(2)(b)s fingerprints. The officers left. § 87(2)(b) had to replace the doors and locks on § 87(2)(b).

On March 19, 2014, at approximately 6:30 a.m., § 87(2)(b) awoke to her bell ringing. She cracked her door open about four or five inches and saw Det. Perez and about nine or ten officers. § 87(2)(b) held the door, told him to wait while she got ready and attempted to shut the door. Det. Perez placed his foot at the doorway. He forcibly pushed the door open against her hold and walked in. The officers went into each of the rooms, closets and the backyard.

All of the officers went into the hallway and knocked on the door to § 87(2)(b). She told them that § 87(2)(b) was not inside. § 87(2)(b) received a call from § 87(2)(b) who was inside. She told him to open the door. He opened the door and the officers went inside without having any sort of conversation with him. He neither told the officers that they could come in nor did he take a step back. § 87(2)(b) waited in the hallway while the officers went inside. She could not see inside.

Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *old at the time of the incident, is a black male who § 87(2)(b) has salt and pepper hair and brown eyes.* § 87(2)(b)

CCRB Testimony

On April 10, 2014, § 87(2)(b) was interviewed at the CCRB (encl. 6A-G). § 87(2)(g)
On March 4, 2014, § 87(2)(b) stood at the doorway to his own apartment and overheard the conversation that was coming from inside of Apt. § 87(2)(b). He was unable to recall what was being said aside from an officer saying, “Sit down. Shut the fuck up. I’m the one that asks the questions. You don’t ask me no questions.” During his interview, § 87(2)(b) presented photographs on his phone that depicted a broken door frame, bottom hinge, door knob, lock and peephole. He stated that it was the front door to Apt. § 87(2)(b).

Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *old at the time of the incident, is a black male who § 87(2)(b) has brown hair and brown eyes.* § 87(2)(b)

CCRB Testimony

On April 24, 2014, § 87(2)(b) was interviewed at the CCRB (encl. 5A-G). § 87(2)(g)

On March 4, 2014, when § 87(2)(b) went to his door an officer said that they were looking for § 87(2)(b). He told them, “Hold on. Let me see if he’s in the back.” He did not open the door. § 87(2)(b) went to the back room. His brother, § 87(2)(b) was home, but § 87(2)(b) who typically resides with him, was not there. The officers continued to bang on the door; it sounded like they were kicking the door. The two went to the front door and § 87(2)(b) opened it before the officers broke it. Immediately about 12 officers ran

inside. Because he did not want to get pushed by them, he stepped to the side. He did not give the officers any verbal consent.

After they were seated on the couch, an unidentified officer asked § 87(2)(b) for his name and hand to take his fingerprint. He said it was against the law, and the officer told him, “Shut the fuck up. Give me your fucking hand.” The officer took his and § 87(2)(b)'s fingerprints with a small machine. He told § 87(2)(b) to “shut the fuck up.” Aside from the front and closet door, there were no other damaged items in the apartment.

On March 19, 2014, § 87(2)(b) woke up to § 87(2)(b) telling him there were officers there. His girlfriend, § 87(2)(b) was also sleeping inside of his room. As the two men were walking to the front door, they saw flashlights in the hallway. Four officers were in the hallway with their guns drawn. In the back room, the lock on the window was broken before the officers had come. The window faces the building's backyard. § 87(2)(b) opened the front door and allowed the other officers inside. The officers went through each of the rooms and the kitchen cabinets. He did not know if they went into the linen closets. His clothes were on the floor in his bedroom.

Attempts to Schedule a Photo Viewing

From July 22, 2014 to August 18, 2014, § 87(2)(b) was called five times and two letters were sent to him to schedule a photo viewing. He scheduled one viewing, but failed to appear to his scheduled appointment.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *old at the time of the incident, is a black female. She is § 87(2)(b)'s girlfriend.* § 87(2)(b)

CCRB Testimony

On April 30, 2014, § 87(2)(b) provided a statement (encl. 7A). On March 19, 2014, § 87(2)(b) was asleep in § 87(2)(b)'s bedroom when two officers came into the room and quickly looked around the room and in the closet. She had had no conversation with the officers.

Attempts to Contact Civilians

Neither § 87(2)(b) nor § 87(2)(b) had a telephone number for § 87(2)(b). On April 24, 2014 and May 7, 2014, please call letters were sent to him. Searches yielded additional addresses where letters were sent to him. He never contacted the CCRB and, therefore, his statement could not be obtained.

NYPD Statement:

Subject Officer: DET. MICHAEL PEREZ

- *Det. Perez, § 87(2)(b) old at the time of the incident, is a Hispanic male who § 87(2)(b) has brown hair and blue eyes. On March 4, 2014, Det. Perez worked in plainclothes from 4:27 a.m. to 1:00 p.m. Det. Perez worked with Det. Joseph Viggiano out of vehicle number § 87(2)(b), which is an unmarked blue Dodge caravan. On March 19, 2014, Det. Perez worked in plainclothes from 4:27 a.m. to 1:00 p.m. He worked with Det. Viggiano and Det. William Schmidt out of vehicle § 87(2)(b). On both dates he was assigned to warrant enforcement out of Brooklyn North Warrant Squad.*

Memo Book

On March 4, 2014, at 6:15 a.m., Det. Perez went to § 87(2)(b). On March 19, 2014, at 5:40 a.m., Det. Perez went to § 87(2)(b) (encl. 8A-F).

Warrant Investigative Data

Det. Perez was assigned to § 87(2)(b)'s parole warrant. In his documented investigative actions, he detailed his visits to each apartment on both incident dates. His summaries are entirely consistent with his CCRB testimony (encl. 8G-L).

CCRB Testimony

On July 9, 2014, Det. Perez was interviewed at the CCRB (encl. M-P).

On March 4, 2014, at approximately 6:15 a.m., Det. Perez and Det. Viggiano responded to

§ 87(2)(b). He was assigned to a NYS parole warrant for § 87(2)(b). He had prior knowledge of the location and its occupants from other search warrants. The residents had a history of fleeing out the back doors, windows and airshaft, and climbing to the windows at other floors in attempts to escape. The arrest records showed that the § 87(2)(b) used both apartments interchangeably. Det. Perez stated that a parole warrant authorizes officers to forcibly enter locations where the officers reasonably believe that individual on the warrant is present.

There were approximately 10 or 12 officers present at the location. Det. Perez was only able to recall Sgt. Raymond Tomins, Det. Michael Ragona and Det. Eric Meza of the Brooklyn North Warrant Squad being present. Officers were positioned in the rear of the building, on the roof looking down at both airshafts, in the front of the building and in the lobby.

Det. Perez knocked on the door to Apt. § 87(2)(b). § 87(2)(b) opened the door. He told her that they had a parole warrant for § 87(2)(b). She allowed them in. The officers searched for him in each room, but did not find him. Officers went through the backyard. The backyard has windows that lead to Apt. § 87(2)(b). The officers left her apartment while she stayed inside.

Det. Perez knocked at Apt. § 87(2)(b). An individual came to the door, which remained closed, and asked who it was. Det. Perez said, "Police," and notified the person that they were looking for § 87(2)(b). The individual said, "He's not here." The individual never identified himself through the door. Det. Perez believed that it could have been § 87(2)(b). The conversation went on for three to four minutes. Det. Perez told him that the officers had to come inside to check. The individual replied, "Okay. Let me go see if he's in the back." That statement indicated to Det. Perez that § 87(2)(b) could have been inside. Det. Perez then received two point-to-point radio transmissions notifying him that an individual was attempting to exit through the rear window and that another individual was trying to exit a window that leads to the airshaft.

Det. Perez kicked the door to forcibly breach it, damaging it as a result. He did not say, "Open the fucking door." Det. Perez did not hear any officer using profanity. He learned that the individuals who were leaving through the windows had retreated back into the apartment. Upon entry, Det. Perez saw individuals identified as § 87(2)(b) and § 87(2)(b). The front bedroom door was locked. Because the officers could not gain entry inside, it was kicked open. No other doors were broken open. Officers looked in each room, in closets, underneath beds and in the kitchen cabinets, which Det. Perez described as all places where a person could hide. There was a broken mirror in the front bedroom. He did not know how it broke. He never intentionally broke it or saw any other officer break it.

§ 87(2)(b) walked into Apt. § 87(2)(b) yelling. The two men became loud and combative, but both provided their identification and consented to a fingerprint scan. Det. Perez did not recall which officer conducted the scan. Det. Perez did not say or hear any officer say, "Shut the fuck up. You don't ask questions. I ask the motherfucking questions," "Give me your fucking hand," or, "Shut the fuck up. If you don't shut the fuck up or sit your ass down, I'm going to arrest you." He did not hear any officer use any profanity or threaten to arrest anyone inside of the apartment.

After Det. Perez explained the situation, the two men calmed down. One admitted to going out the window and the other said that he went out of the airshaft.

On March 19, 2014, at approximately 5:40 a.m., Det. Perez responded to § 87(2)(b) with the same warrant, which remained active until § 87(2)(b) was taken into custody.

Officers were positioned in the back, the front and the roof. Det. Perez knocked at Apt. § 87(2)(b). § 87(2)(b) opened the door. He asked if § 87(2)(b) was home. She said, “Yes, but where is parole?” This indicated to Det. Perez that he was there. § 87(2)(b) backed up from the door, implying consent. She never offered any sort of resistance in holding the door. She was not pushed back by the door. The officers entered the location. They searched for him in the rooms. § 87(2)(b) and § 87(2)(b) yelled at the officers. Det. Perez tried to speak with them to explain his authorization with the warrant, but they did not cooperate.

Det. Perez left and knocked on the door of Apt. § 87(2)(b). An individual came to the door, but did not open it. The individual did not identify himself, leading Det. Perez to believe that it may have been § 87(2)(b). The individual was on the phone with § 87(2)(b) while she was in the hallway next to the officers.

Det. Perez received radio transmission from an officer in the backyard who observed an individual in the back bedroom. He also learned by radio that an officer entered the location through a rear window. Because the front door was not opened, the officers believed that § 87(2)(b) may have been inside and that the door was not opened in an attempt to stall the officers as he escaped. Det. Perez did not know which officers entered the location through the rear. Det. Perez never saw any officers with their guns drawn. The individual inside opened the door and allowed the officers inside. Det. Perez could not recall if it was § 87(2)(b) or § 87(2)(b) at the door. They were both home. The officers went through each of the rooms in the apartment. § 87(2)(b) was not home.

NYPD Documents

I-Card Investigative Data

I-Card number § 87(2)(b) was issued for § 87(2)(b) by Det. Roxanne Joseph of the 73rd Precinct Det. Squad. The I-Card identified § 87(2)(b) who was sought as a suspect, with probable cause to arrest. His address is listed as § 87(2)(b) in Brooklyn (encl. 9A).

Warrant Squad Roll Calls and NYPD Photographs

The officers working on Det. Perez’s team on both incident dates were Sgt. Raymond Tomins, Det. Jose Dejesus, Det. Eric Meza, Det. William Schmidt, Det. Michael Ragona and Det. Joseph Viggiano (encl. 9B-K). Photographs of these officers were requested. (encl. 9L-R)

NYS Division of Parole Documents

Parole Warrant and Supplemental Violation of Release Report

On February 18, 2014, parole warrant number § 87(2)(b) was issued by Senior Parole Officer Catherine Adams of the New York State Division of Parole. It instructs any parole officer, peace officer or any officer authorized to serve criminal or civil process to retake and detain § 87(2)(b). The supplemental violation of release report, signed by Parole Officer M. Feliz-Jones and Senior Parole Officer Catherine Adams of the New York State Division of Parole, notes that § 87(2)(b) had been residing with his mother at § 87(2)(b) Apt. § 87(2)(b) in Brooklyn, and that on numerous occasions he was found at his brother’s residence in Apt. § 87(2)(b) in the same building (encl. 10A-U).

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of September 26, 2014 with regard to the incident.

Civilians Conviction History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and the first in which § 87(2)(b) is a participant.

Subject Officer CCRB History

- Det. Perez has been a member of the service for 12 years and there is one substantiated CCRB allegation against him (encl. [x]).
 - In case number 200702612, a vehicle search allegation was substantiated against him with recommended charges. The NYPD imposed no disciplinary action.

Conclusion

Identification of Subject Officers

- Because Det. Perez was the lead investigating officer assigned to § 87(2)(b)'s parole warrant, Allegations A and D are pleaded against him.
- § 87(2)(b) described the officer who spoke rudely as a white male who was 5'8" tall, heavy-set with white hair in his late fifties. § 87(2)(b) described the officer who spoke rudely to them as a 35-year-old white male who was 5'8" tall, chubby, 200 pounds, and had black unkempt hair under a hat and full beard. The CCRB obtained photographs of all officers who were potentially at the incident location. None of the officer's pedigrees match the descriptions provided by § 87(2)(b) or § 87(2)(b). Given that they provided very different descriptions, the investigation was unable to narrow down the potential subject officer. § 87(2)(b) stated that she would be unable to recognize the subject officer in a photo. § 87(2)(b) did not cooperate with the investigation's efforts to conduct a photo viewing. Without his participation, the investigation was unable to determine the identity of the subject officer. Therefore, Allegations B and C are pleaded against "an officer" from the Warrant Section.

Allegations Not Pleaded

- § 87(2)(g)
[REDACTED]
[REDACTED]

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: On March 4, 2014, Det. Michael Perez entered and searched § 87(2)(b) Apt. § 87(2)(b) and Apt. § 87(2)(b) in Brooklyn.

Allegation D – Abuse of Authority: On March 19, 2014, Det. Michael Perez entered and searched § 87(2)(b) Apt. § 87(2)(b) and Apt. § 87(2)(b) in Brooklyn.

The following facts are undisputed: On March 4, 2014, officers entered and searched Apt. § 87(2)(b) after § 87(2)(b) allowed them in and consented to a search. On that same date, officers forced entry to Apt. § 87(2)(b) when § 87(2)(b) did not open the door. On March 19, 2014, officers entered Apt. § 87(2)(b) and § 87(2)(b) without consent from any resident. Officers had a valid parole warrant for § 87(2)(b) on both incident dates. The supplemental violation of release report notes that he had been residing with his mother at § 87(2)(b) Apt. § 87(2)(b) in Brooklyn, and that on numerous occasions he was found at his brother's residence in Apt. § 87(2)(b) in the same building.

Det. Perez stated that as he had executed warrants at the location before, he knew that the § 87(2)(b) brothers had a history of fleeing from officers. At the time of the first warrant execution in Apt. § 87(2)(b) when he kicked down the door, he received radio transmissions from officers surrounding the building's perimeter notifying him that males were attempting to exit through the window and airshaft.

A parole warrant is the functional equivalent of an arrest warrant for purpose of having probable cause to apprehend an individual. *People v. Diaz*, 618, N.Y.S.2d 1000 (1994 – Sup. Ct. Richmond County) (encl. 1A-D). In order to affect an arrest, an officer may enter any premises in which the officer reasonably believes the subject of the warrant to be present. An officer must make reasonable effort to give notice of authority and purpose to an occupant. If the officer is authorized to enter the premises without giving notice of his authority and purpose, or if after giving such notice the officer is not admitted, the officer may enter such premises, and by a breaking if necessary (Article 120.80 of the New York State Criminal Procedure Law) (encl. 1E).

§ 87(2)(g)

It is therefore recommended that **Allegations A and D** be closed as exonerated.

Allegation B – Discourtesy: On March 4, 2014, an officer spoke rudely to § 87(2)(b) and § 87(2)(b)

Allegation C – Abuse of Authority: On March 4, 2014, an officer threatened to arrest

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be closed as officer unidentified.

Team: 5

Investigator: _____

	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date